POST

Anderson's Simplicity Speech at TCEQ

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Below is a copy of yesterday's speech imploring TCEQ to begin simplifying the environmental regulatory system in the State of Texas.

To watch the speech, just click here (http://www.texasadmin.com/tx/tceq/open_meeting/20170607/) and click on **Item #23**. And interesting discussion between the Commissioners at the end that everyone will want to see.

Simplicity Speech

I'm here to accept responsibility for what I've done—and try to make things right. I've made millions of dollars off the complexity of the regulatory system … and it's wrong.

Teddy Roosevelt once said, "If you could kick the person in the pants responsible for most of your trouble, you wouldn't sit for a month."

I can't sit down.

I am not here to blame any of you. It's my problem. My mistake. My responsibility. Boenhoeffer said, "Action springs not from thought, but from a readiness for responsibility". This is my problem. My responsibility. My duty to fix. And I'm going to fix it.

Because I make money off of complexity … the regulatory system in many respects is benefiting me more than it is my clients or the environment. The environmental regulatory system in the United States, to which TCEQ is a part of, has been found to be the most complicated regulatory system in human history. A study found that the environmental regulatory system is twice as complicated as the tax code. The system includes millions of pages of Federal and State laws, rules, guidance, permit terms, and other documents that establish legal obligations on Texas citizens and businesses.

Gina McCarthy, the former head of the EPA during the Obama Administration, said:

—"I hate that each sector has 17 to 20 rules that govern each piece of equipment and you've got to be a **neuroscientist** to figure it out."

President Obama called the air quality management system "hugely complicated and very technical". Others have called it "complex", "very complicated", "contentious", "lengthy", "unreadable", "incomprehensible", "obsolete", "overlapping", and "a model of redundancy".

TCEQ requirements in many ways are more lengthy and complicated than Federal requirements. TCEQ generally takes the Federal rules and then adds even more requirements on to them. The number of TCEQ rule records for example has grown by over 25% from 1999 to 2016. Although much of these rules are in response to Federal mandates—not all fingers can be pointed at the Federal government for the resulting size and complexity. I don't have time to go into the weeds, but how many times for example do we need to say something? We've got LDAR requirements repeated in 28 VHP, special conditions, 117 rules, "triple J". Mark Twain once said, "The more you explain it, the less I understand it." How can the public understand all this? Let's just be honest. The fact is they can't.

The answer is simplicity. We need to be the change we want to see at EPA. If we want EPA to be simpler, we must be simpler. That's what this petition is about.

The only way to become simpler is to build self-discipline into the process. We need a system that holds us accountable to simplicity. Right now we've got nothing. We're drunk on rules. And we keep drinking. Unless we put self-discipline into our lives, our answer to the next problem is going to be another 6-pack of tall-boys.

Here is an idea Chairman Shaw. And it's gonna feel good. I'm gonna use your first name with no disrespect, but just because in rule-aholics anonymous we only use our first name. Walk into a small room of people sometime, who will probably be drinking way too much water-downed coffee, and just say, "Hi my name is Bryan, and I'm a rule-aholic." What a relief its going to be. Like the world just came off your shoulders. I'm going to say it now, "Hi, my name is Jed and I'm a rule-aholic" … [By the way, this is where all of you are suppose to say, "Hi Jed."]

There is a different way to live. A more simple way to live. A way that protects the environment better. A way that puts more money in our pocket. A way that gives us more freedom as individuals and companies.

I didn't vote for President Trump, but I love what he is trying to do with removing unnecessary regulatory burdens. Overall, I think we as humans are intended to be free—free in every sense of the word. Free not only from pollution, but free to the extent possible from rules that cast "can'ts" and "shalls". The danger with rules is the same danger Robert Frost wrote about "walls" in the poem "Mending Walls." Robert Frost wrote:

Before I built a wall I'd ask to know

What I was walling in or walling out,

And to whom I was like to give offence.

Rules that we create to protect ourselves are the same rules that can imprison us. We need to have a system in place to evaluate our rules and ask is this still protecting us, or is this starting to "wall us in" more than danger out? Is this wall getting too high and complicated? Do we still need this rule anymore, or is it imprisoning our environmental and economic progress? Right now we've got nothing. We are working at a bar with our drinking buddies around us and attempting not to drink. Can't work. Gotta have a program. I've met with some political leaders and they say hey I don't like living this way, but I don't have a choice. It's the federal government. It's the system. It's not my fault. I can't do anything about it. The Federal government needs to fix it first… . That's a victim mentality. Gotta stop. We are not victims. We are children of an all-powerful God. We are the State of Texas. We gotta put the Jagermeister bottle down and get a program.

The petition I submitted creates a program. It borrows from the Federal government's new 2 for 1 program since there is already precedent for it. It's not the big book, but it beats drinking. And I'm suggesting we give it a shot.

With simplicity will come better transparency. With transparency will come better accountability. The more simple things are, the more everyone understands them. The more everyone understands them, the better they can comply with them. It's that simple.

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